

		Thus, the general demurrer to the third cause of action is SUSTAINED with 20 days leave to amend.
3	Martinez medina vs. Santa Ana Unified School District 2023-01320099	Demurrer to Cross- Complaint Cross-Defendant Santa Ana Unified School District's unopposed demurrer to the Cross-Complaint filed by Cross-Complainants Kevin Harris, in <i>pro per</i>, and M. Harris, a minor, in <i>pro per</i> is SUSTAINED with 20-days leave to amend. Cross-Defendant challenges the Cross-Complaint in its entirety on the grounds it fails to plead compliance or excuse for such compliance with the Government Tort Claims Act. Pursuant to Government Code section 945.4, "no suit for money or damages may be brought against a public entity on a cause of action for which a claim is required to be presented...until a written claim therefor has been presented to the public entity and has been acted upon. . . or has been deemed to have been rejected. . ." (Gov. Code §945.4). The requirement "is not merely procedural, but is a condition precedent to maintaining a cause of action and, thus, is an element of the plaintiff's cause of action. [Citation.] As a result, the 'failure to allege facts demonstrating or excusing compliance with the claim presentation requirements subjects a claim against a public entity to a demurrer for failure to state a cause of action.' [Citation.]" (<i>Perez v. Golden Empire Transit Dist.</i> (2012) 209 Cal.App.4th 1228, 1236; see also <i>State of California v. Superior Court (Bodde)</i> (2004) 32 Cal.4th 1234, 1243.) Here, the Cross-Complaint fails to allege compliance or excuse from compliance with the claim presentation requirement. Cross-Complainants seek monetary damages as to each cause of action and, consequently, a claim was required as to each. (Gov. Code, §945.4.) Based on the foregoing, the demurrer is SUSTAINED with 20-days leave to amend. Moving party to give notice.